

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4227

By: Kannady

AS INTRODUCED

An Act relating to child sexual abuse; prohibiting the concealing of details relating to certain claims; requiring that identifying information of victim be confidential; providing which agreements act shall apply to; providing exception; amending 22 O.S. 2021, Section 152, as last amended by Section 1, Chapter 115, O.S.L. 2025 (22 O.S. Supp. 2025, Section 152), which relates to criminal procedure; authorizing the prosecution of sexual crimes against children to be brought at any time; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3020 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. Notwithstanding any other provision of law, any provision of a settlement agreement that has the purpose or effect of concealing the details relating to a claim of child sexual abuse, as defined in Section 843.5 of Title 21 of the Oklahoma Statutes, or child sexual exploitation, as defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, and including such offenses set forth in Title 21

1 of the Oklahoma Statutes, is void and unenforceable as contrary to
2 the public policy of this state. Provided, however, that
3 identifying information concerning a victim of child sexual abuse
4 shall be deemed and maintained as confidential.

5 B. Subject to subsection C of this section, subsection A of
6 this section shall apply to an agreement entered into before, on, or
7 after the effective date of this act.

8 C. An individual or entity may not enforce or attempt to
9 enforce an agreement or a provision of an agreement described by
10 subsection A of this section and entered into before the effective
11 date of this act unless:

12 1. A cause of action related to the agreement was initiated
13 prior to the effective date of this act; and

14 2. The individual or entity obtains a declaratory judgment that
15 is final and not subject to appeal and declares that the agreement
16 or provision is enforceable.

17 SECTION 2. AMENDATORY 22 O.S. 2021, Section 152, as last
18 amended by Section 1, Chapter 115, O.S.L. 2025 (22 O.S. Supp. 2025,
19 Section 152), is amended to read as follows:

20 Section 152. A. Prosecutions for the crimes of bribery,
21 embezzlement of public money, bonds, securities, assets or property
22 of the state or any county, school district, municipality or other
23 subdivision thereof, or of any misappropriation of public money,
24 bonds, securities, assets or property of the state or any county,

1 school district, municipality or other subdivision thereof,
2 falsification of public records of the state or any county, school
3 district, municipality or other subdivision thereof, and conspiracy
4 to defraud the State of Oklahoma or any county, school district,
5 municipality or other subdivision thereof in any manner or for any
6 purpose shall be commenced within seven (7) years after the
7 discovery of the crime; provided, however, prosecutions for the
8 crimes of embezzlement or misappropriation of public money, bonds,
9 securities, assets or property of any school district, including
10 those relating to student activity funds, or the crime of
11 falsification of public records of any independent school district,
12 the crime of criminal conspiracy, the crime of embezzlement pursuant
13 to Sections 1451 through 1461 of Title 21 of the Oklahoma Statutes,
14 the crime of False Personation or Identity Theft pursuant to
15 Sections 1531 through 1533.3 of Title 21 of the Oklahoma Statutes,
16 the financial exploitation of a vulnerable adult pursuant to
17 Sections 843.1, 843.3 and 843.4 of Title 21 of the Oklahoma
18 Statutes, or Medicaid fraud pursuant to Section 1005 of Title 56 of
19 the Oklahoma Statutes, shall be commenced within five (5) years
20 after the discovery of the crime.

21 B. Prosecutions for criminal violations of any state income tax
22 laws shall be commenced within five (5) years after the commission
23 of such violation.

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1 C. 1. Prosecutions for sexual crimes against children,
2 specifically rape or forcible sodomy, sodomy, lewd or indecent
3 proposals or acts against children, involving minors in pornography
4 pursuant to Section 886, 888, 1111, 1111.1, 1113, 1114, 1021.2,
5 1021.3, 1040.12a or 1123 of Title 21 of the Oklahoma Statutes, any
6 offense prohibited by Section 843.5 of Title 21 of the Oklahoma
7 Statutes, sexual abuse of a vulnerable adult pursuant to Section
8 843.1 of Title 21 of the Oklahoma Statutes, child trafficking
9 pursuant to Section 866 of Title 21 of the Oklahoma Statutes,
10 nonconsensual dissemination of private sexual images pursuant to
11 Section 1040.13b of Title 21, and failure to report abuse or neglect
12 pursuant to Section 1-2-101 of Title 10A of the Oklahoma Statutes
13 ~~shall~~ may be commenced ~~by the forty-fifth birthday of the alleged~~
14 ~~victim~~ at any time after the commission of the offense. Any offense
15 for which the prosecution is not time-barred upon the effective date
16 of this act shall be subject to the provisions of this subsection.
17 Prosecutions for such crimes committed against victims eighteen (18)
18 years of age or older shall be commenced within twenty (20) years
19 after the discovery of the crime. As used in this paragraph,
20 "discovery" means the date that a physical or sexually related crime
21 involving a victim eighteen (18) years of age or older is reported
22 to a law enforcement agency. Any offense for which the prosecution
23 is not time-barred upon the effective date of this act shall be
24 retroactively subject to the provisions of this subsection.

1 2. However, prosecutions for the crimes listed in paragraph 1
2 of this subsection may be commenced at any time after the commission
3 of the offense if:

4 a. physical evidence is collected and preserved that is
5 capable of being tested to obtain a profile from
6 deoxyribonucleic acid (DNA), and

7 b. probable cause as to the identity of the offender is
8 subsequently established through the use of a DNA
9 profile using evidence listed in subparagraph a of
10 this paragraph, or

11 c. the accused person has provided a confession or
12 admission related to the crime.

13 3. No prosecution under this subsection shall be based upon the
14 memory of the victim that has been recovered through psychotherapy
15 unless there is some evidence independent of such repressed memory.

16 4. Any person who knowingly and willfully makes a false claim
17 pursuant to this subsection or a claim that the person knows lacks
18 factual foundation may be reported to local law enforcement for
19 criminal investigation and, upon conviction, shall be guilty of a
20 felony.

21 D. Prosecutions for criminal violations of any provision of the
22 Oklahoma Wildlife Conservation Code shall be commenced within three
23 (3) years after the commission of such offense.

1 E. Prosecutions for the crime of criminal fraud or workers'
2 compensation fraud pursuant to Section 1541.1, 1541.2, 1662 or 1663
3 of Title 21 of the Oklahoma Statutes shall commence within three (3)
4 years after the discovery of the crime, but in no event greater than
5 seven (7) years after the commission of the crime.

6 F. Prosecution for the crime of false or bogus check pursuant
7 to Section 1541.1, 1541.2, 1541.3 or 1541.4 of Title 21 of the
8 Oklahoma Statutes shall be commenced within five (5) years after the
9 commission of such offense.

10 G. Prosecution for the crime of solicitation for murder in the
11 first degree pursuant to Section 701.16 of Title 21 of the Oklahoma
12 Statutes shall be commenced within seven (7) years after the
13 discovery of the crime. For purposes of this subsection,
14 "discovery" means the date upon which the crime is made known to
15 anyone other than a person involved in the solicitation.

16 H. In all other cases a prosecution for a public offense must
17 be commenced within three (3) years after its commission.

18 I. Prosecution for the crime of accessory after the fact must
19 be commenced within the same statute of limitations as that of the
20 felony for which the person acted as an accessory.

21 J. Prosecution for the crime of arson pursuant to Section 1401,
22 1402, 1403, 1404 or 1405 of Title 21 of the Oklahoma Statutes shall
23 be commenced within seven (7) years after the commission of the
24 crime.

1 K. Prosecutions for criminal violations in which a deadly
2 weapon is used to commit a felony or prosecutions for criminal
3 violations in which a deadly weapon is used in an attempt to commit
4 a felony shall be commenced within seven (7) years after the
5 commission of the crime.

6 L. Prosecutions for the crime of human trafficking pursuant to
7 Section 748 of Title 21 of the Oklahoma Statutes shall be commenced
8 within three (3) years after discovery of the crime. For purposes
9 of this subsection, "discovery" means the date upon which the crime
10 is reported to a law enforcement agency.

11 SECTION 3. This act shall become effective November 1, 2026.

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